



Bhubaneswar Municipal Corporation

ICOMC Tower, Unit-IX, Bhubaneswar- 751022
Phone no. 0674-2431253, e-mail: info@bmc.gov.in



No.....39357.....[See Rule-10]
/BMC,Bhubaneswar, Date.24.9.2024./

File No-MBP-BMC-Layout-302/2022.

Permission under Sub-Section (3) of the Section-16 of the Odisha Development Authorities Act, 1982 is hereby granted in favour of **M/s. Baikuntha Balia Consultancy & Developers Pvt. Ltd** represented through its Managing Director, **Mr. Santosh Mohapatra** for approval of Sub-division of land (lay-out plan) over **Plot No -650/2113, Khata No- 371/1551, Mouza- Patrapada, Bhubaneswar** subject to following conditions /restrictions:-

(1) General Conditions: -

- (i) The development shall be undertaken strictly according to approved sub-divisional layout plan.
- (ii) The land in question must be in lawful ownership and peaceful possession of the applicant.
- (iii) The permission is valid for a period of three years with effect from the date of its issue.
- (iv) Permission accorded under the provision of section 16 of ODA Act, 1982 cannot be construed as an evidence to claim right, title and interest on the plot on which the permission has been granted.
- (v) If any dispute arises with respect to right, title, interest on the land on which the permission has been granted, the permission so granted shall be automatically treated as cancelled during the period of dispute.
- (vi) Any construction and development made by the applicant or owner on the disputed land will be at his risk without any legal or financial liability on the Authority.

(2) Sub-Divisional Layout:-

- (i) The sub-division of land shall be used exclusively for **Residential** purpose and the use shall not be changed to any other use without prior approval of this Authority.
- (ii) The land over which sub-divisional layout is proposed shall be accessible by an approved means of access of **9.14 mtr**, in width.



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- (iii) The applicant shall construct the drain till the public disposal point.
- (iv) **The road area free gifted for purpose of road shall be in nature of public thoroughfare and shall not be blocked by any boundary wall/gate/ physical obstruction.**
- (v) The water supply, electricity, internal roads and drains shall be developed and provided by the applicant on his own cost and transferred to respective Government agencies for further maintenance.
- (vi) Plantation along the internal roads is to be made before delivering the sub-plots.
- (vii) All road side drains are to be developed maintaining proper slope so as to convey storm water to the public drain with intimation to BMC for verification.
- (viii) All the Layout roads shall be developed with permeable pavers block along with recharging pits of adequate capacity shall be developed to minimize the storm water runoff to the drain.
- (ix) **All the sub-plots shall be demarcated strictly as per the approved plan.**
- (x) The Sub-plots shall not be further sub-divided or amalgamated without prior approval under Section-16 of ODA Act,1982.
- (xi) In case the Kisam of plot is not Gharabari, then the applicant shall convert the Kisam of the of the subdivided plots to "Gharabari" before selling or utilizing or leasing out or otherwise disposing it of and prior to construction of the building.

(3) **Area Statement:-**

Total Plot Area- 2294.96 Sqmt.,

Total Sub Plot area- 1506.29 Sqm

Open Space area- 114.97 Sqm

Sub Plot No.	North	South	East	West	Net Plot Area
Sub Plot 1	25.80 Mtr	25.08 Mtr	11.67 Mtr	11.70 Mtr	296.95 Sqm
Sub Plot 2	25.80 Mtr	22.42 Mtr	25.53 Mtr	24.65 Mtr	604.29 Sqm
Sub Plot 3	14.08 Mtr	13.71 Mtr	10.68 Mtr	7.87 Mtr	143.06 Sqm
Sub Plot 4	10.18 Mtr	13.71 Mtr	66.89 Mtr	67.48 Mtr	461.99 Sqm



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(4) The layout plan is approved on payment of followings.-

Item	Amount (in Rs)	Amount in words
Security Fee	Rs. 1,50,629/-	(Rupees One Lakh Fifty Thousand Six Hundred Twenty Nine only)
Compounding fee for Sub Plot	Rs. 9,31,000/-	(Rupees Nine Lakh Thirty One Thousand only)
Land Development	Rs. 7,536/-	(Rupees Seven Thousand Five Hundred Thirty Six) Only

(5) Other Conditions:-

- Approval of plans and acceptance of any statement or document pertaining to such plan shall not absolve the owner or registered technical person or architect under whose supervision the buildings are constructed from their responsibilities imposed under ODA (Planning & Building Standards) Rules, 2020 or under any other law for the time being in force.
- Neither granting of the permit nor the approval of the drawings and specifications, nor inspections made by the Authority during erection of the buildings shall in any way relieve the owner of such buildings from full responsibility for carrying out the work in accordance with the requirements of NBC 2005 and these rules.
- Approval of plan shall mean granting of permission to construct under these Rules in force only and shall not mean among other things.-
 - The title over the land or buildings;
 - Easement rights;
 - Variation in area from recorded area of a plot or a building;
 - Structural stability;
 - Workmanship and soundness of materials used in the construction of the buildings.
 - Quality of building services and amenities in the construction of the buildings.
 - Other requirements or licenses or clearances required to be obtained for the site /premises or activity under various other laws.

(6) The owner /applicant shall:-

- Permit the Authority to enter the layout or premises, for which the permission has been granted at any reasonable time for the purpose of enforcing the rules/regulations;



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- (b) Give written notice to the Authority before commencement of work on building site in Form-V, periodic progress report in Form-VII, notice of completion in Form-VI and notice in case of termination of services of Technical persons engaged by him.
- (c) Obtain Occupancy Certificate from the Authority prior to occupation of buildings in full or part.
- (7) Wherever tests of any material are made to ensure conformity of the requirements of the rules/regulations in force, records of the test data shall be kept available for inspection during the construction of buildings and for such period thereafter as required by the Authority.
- (8) If the Authority finds at any stage that the construction is not being carried on according to the sanctioned plan or is in violations of any of the provisions of these rules, it shall notify the owner and no further construction shall be allowed until necessary corrections in the plan are made and the corrected plan is approved.
- (9) Other conditions to be complied by the applicant are as per the following:**
- (a) The concerned Architect / Applicant / Developer are fully responsible for any deviations, additions & alternations beyond approved plan/ defective construction etc. shall be liable for action as per the provisions of the Rules.
- (b) A condition in the approval of building plan over sub-divided plot shall be inserted to the effect that the plinth level of the building shall be raised 2 ft. above the High Flood Level (HFL).
- (c) All the passages around the building shall be made of permeable pavers block for absorption of rain water and seepage in to the ground.
- (d) Rain water harvesting structure and recharging pits of adequate capacity shall be developed to minimize the storm water runoff to the drain.
- (e) After sub-division plan has been approved, the Authority shall not permit construction of building over the individual sub-plots, unless the developer has laid down and make streets along with storm water drains as per the approved plan and constructs the drain till the public disposal point.
- (f) Drainage shall be discharged up to the public disposal point through own arrangement.



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- (g) In case where construction or development is not as per the approved & layout plan, the refundable non-earning Security deposit of Rs. 1,50,629/- shall be forfeited and separate action will be initiated against the Applicant/ Developer as per the provision of the ODA Act, 1982.

BY ORDER

Sujoy 24/09/24
I/C City Planner/Authorised Officer
Bhubaneswar Municipal Corporation

Memo No. 39358 / BMC, Bhubaneswar, Dated 24.9.2024 /

Copy forwarded along 2 copies of the approved plans M/s. Baikuntha Balia Consultancy & Developers Pvt. Ltd, Managing Director, Mr. Santosh Mohapatra, Patrapada, Bhubaneswar.

Sujoy 24/09/24
I/C City Planner/Authorised Officer
Bhubaneswar Municipal Corporation

Memo No. / BMC, Bhubaneswar, Dated...../

Copy forwarded to the Zonal Deputy Commissioner (South West) BMC, Additional Tahasildar, Khandagiri /Bhubaneswar, for information.

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I/C City Planner/Authorised Officer
Bhubaneswar Municipal Corporation